

Rakesh Kumar v. State of U.P. Thru The Ministry Of Energy And Others

High Court of Judicature at Allahabad · Division Bench · 26 April 2011 · WRIT - C No. 24090 of 2011 · **Writ disposed; restore supply within 72 hours of deposit and application**

HEADNOTE

Where a consumer offers to pay the claimed electricity charges in full, clause 6.5 of the U.P. Electricity Supply Code, 2005 allows deposit of the entire demand or six-month average bills, whichever is less, and consideration of any complaint. The Court directed deposit within two months of a certified copy, an application for restoration, and reconnection without delay and not later than 72 hours; any theft allegation remains independently actionable. A later modification seeking more time to pay was refused.

FACTUAL SUMMARY

Rakesh Kumar approached the Allahabad High Court after his electricity supply was disconnected, offering to pay the amount claimed by the distribution licensee if the Court fixed a time for deposit and directed restoration of the connection. Counsel for the Corporation stated that it was ready to consider his cause. He later sought more time to deposit by a modification application, which was dismissed on 5 May 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

restoration of supply on deposit of billed amount

HOLDING

Clause 6.5 permits a consumer who is ready to pay the claimed charges to deposit the entire demand or electricity charges calculated on the average of the preceding six months' bills, whichever is less, and to have any complaint considered by the competent authority. Where the consumer elects to deposit the entire amount, deposit is to be made within two months of a certified copy; on an application for restoration the licensee, after considering the matter, is to restore supply without delay and not later than 72 hours. The direction does not affect any independent theft proceeding, in which the licensee may act in accordance with law if theft is established. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISCONNECTION INVOLVED THEFT OF ELECTRICITY

The Court left any theft allegation to be dealt with independently; if established, the licensee may take steps in accordance with law. ¶ 1